

now in force, although no notice of a trust is allowed on the register, equities may be enforced against the registered owners of ships or shares of ships in the same manner as they may be enforced in respect of any other personal property (*f*), * and it follows that if a ship be purchased by A. in the name of a stranger, there will be a resulting trust in favour of A.]

8. **Resulting trusts under papistry acts.**—While the papistry laws were in force, if A., a papist, had purchased an estate in the name of B., the Court could not have presumed a resulting trust to A., which as soon as raised, would have become forfeitable to the State (*a*).

9. **In purchases for giving votes.**—And so if a purchaser take a conveyance in the name of another, with a view of giving him a vote for a member of parliament, he cannot afterwards claim the beneficial ownership, for the operation of such a right would render the original purchase fraudulent (*b*).

[10. **Patents, designs and trade marks.**—Under the Patents, Designs and Trade Marks Act, 1883, no notice of any trust is allowed on the register, and the registered proprietor of a patent, copyright in a design, or trade mark, as the case may be, is empowered (subject to any rights appearing from the register to be vested in any other person) absolutely to assign, grant licences as to, or otherwise deal with, the same, and to give effectual receipts for any consideration for such assignment, licence, or dealing. But any equities in respect of such patent, design, or trade mark may be enforced in like manner as in respect of any other personal property (*c*).]

11. **Parol evidence as regards Statute of Frauds.**—As the Statute of Frauds (*d*) extends to creations or declarations of trusts by parties only, and does not affect, indeed expressly excepts, trusts arising by operation or construction of law, it is competent for the real purchaser to prove his payment of

[*(f)* See 17 & 18 Vict. c. 104, ss. 37, *et seq.*; 25 & 26 Vict. c. 63, s. 3; and see *Chasteauneuf v. Capeyron*, 7 App. Cas. 127.]

(*a*) See *Redington v. Redington*, 3 Ridge. 184.

(*b*) *Groves v. Groves*, 3 Y. & J. 163, see 172, 173.

[*(c)* 46 & 47 Vict. c. 57, ss. 85, 87.]

(*d*) 20 Car. 2, c. 3.